

replace the shares. He conceived the plaintiff, one of the next of kin, had no such *election* of choosing between the *specific thing* and the *advantage* made of it (*d*).

13. **Costs.**—The *costs of the suit* will, as a general rule, follow the decree—that is, if the trustee be compelled to give up his purchase, unless his conduct was perfectly honourable and the sale is set aside on the mere dry rule of equity (*e*), he must pay the expenses he has himself occasioned (*f*); and if the charge be unfounded, the costs must be paid by the plaintiff. But if there be great delay on the part of the *cestui que trust*, the costs will be refused him, though he succeed in the suit (*g*); and, on the other hand, if the suit be dismissed, not because the transaction was not originally impeachable, but merely on account of the great interval of time, the Court may refuse to order the plaintiff to pay the costs of the defendant (*h*).

14. **Where the sale is set aside after the purchaser's death.**—If the *trustee devise the estate* purchased by him, and the purchase is set aside as against the devisee, it is conceived that as the devise carried all the testator's interest in the property the monies repaid will belong to the devisee. But if the *trustee die intestate*, then whether monies repaid shall belong to the next of kin or the heir of the trustee is a question of great difficulty. In favour of the former it may be urged, that as there is no equity between the heir-at-law and next of kin, the monies repaid being in fact personal estate must belong to the next of kin: that the Court rescinds the transaction by taking an account of rents and *allowing 4 per cent. interest on the purchase-money [*495] from the time of the purchase, and that the rents and interest accrued during the life of the intestate must certainly be regarded as personal estate, and that the right of the next of kin is supported by *Lawes v. Bennett* (*a*), and other cases,

(*d*) S. C.

(*e*) *Baker v. Carter*, 1 Y. & C. 250.

(*f*) *Whichcote v. Lawrence*, 3 Ves. 752; *Hall v. Hallet*, 1 Cox, 141; *Sanderson v. Walker*, 13 Ves. 601, 604; *Crowe v. Ballard*, 2 Cox, 253; S. C. 3 B. C. C. 117; *Dunbar v. Tre-*

dennick, 2 B. & B. 304; *Smedley v. Varley*, 23 Beav. 358.

(*g*) *Attorney-General v. Lord Dudley*, G. Coop. 146.

(*h*) *Gregory v. Gregory*, G. Coop. 201.

(*a*) 1 Cox, 167.